

Court No. - 3

Case :- WRIT - C No. - 9507 of 2024

Petitioner :- Jasbir

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Tanveer Zafar Khan

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Anjani Kumar Mishra,J.

Hon'ble Jayant Banerji,J.

1. Challenge in the writ petition is to a demand notice (Annexure No. 1 to the writ petition), which has been issued by the Executive Engineer, Electricity Distribution Division-III, Shamli.
2. It is submitted by counsel for the petitioner that he has filed an application for compounding under Section 152 of the Electricity Act.
3. Counsel appearing for the Electricity Board seeks time to obtain instructions as to whether any order was passed on the application filed by the petitioner. He is granted a week's time for this purpose.
4. Put up as fresh after a week.

Order Date :- 20.3.2024

A. V. Singh

Court No. - 21

Case :- WRIT - C No. - 9507 of 2024

Petitioner :- Jasbir

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Tanveer Zafar Khan

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Learned counsel for the Electricity Department seeks further time to complete his instructions.
2. Put up as fresh on **15.04.2024.**

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 29.3.2024

Ankit.

Court No. - 21

Case :- WRIT - C No. - 9507 of 2024

Petitioner :- Jasbir

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Tanveer Zafar Khan

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The petitioner has challenged the recovery certificate dated 06.06.2023 issued by respondent no.3 for recovery of electricity dues in a case of theft of electricity.

2. Learned counsel for the respondent-Electricity Department has placed on record a letter dated 02.04.2024 addressed to the Additional District Magistrate (Finance and Revenue) mentioning that the recovery notice has been withdrawn. Counsel for the respondent-Electricity Department states that the provisional assessment notice has already been issued to the petitioner and as soon as his reply is received, final order will be passed.

3. Having regard to the aforesaid statement of learned counsel for the respondent-Electricity Department, we are of the opinion that no further direction is required to be issued in the instant petition. The petition is **disposed of** by providing that the petitioner may file his objection against the fresh provisional assessment notice and the respondent-Electricity Department shall proceed strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

Order Date :- 15.4.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)